
Appeal Decision

Site visit made on 9 September 2026

by **B Pattison BA (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6012162

Oakwood House, School Lane, West Kingsdown, Kent TN15 6AW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr P Hill against the decision of Sevenoaks District Council.
 - The application Ref is 26/00681/HOUSE.
 - The development proposed is erection of detached outbuilding.
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Decision

1. The appeal is allowed and planning permission is granted for erection of a detached outbuilding at Oakwood House, School Lane, West Kingsdown, Kent TN15 6AW in accordance with the terms of the application, Ref 26/00681/HOUSE, subject to the conditions in the attached schedule.

Preliminary Matter

2. On 17 August 2026, Government published a revised National Planning Policy Framework (the Framework). This included revisions to policies that are pertinent to the appeal, such as those relating to development in the Green Belt. During the appeal the main parties were invited to comment on the relevance of the revised Framework to the appeal proposal. In my decision, I have had regard to the written responses.

Main Issue

3. The main issue is whether or not the proposal would be inappropriate development within the Green Belt having regard to the Framework and any relevant development plan policies and its effect on the openness of the Green Belt.

Reasons

4. The appeal site is a large dwelling set in expansive grounds, accessed via a very long driveway. The garden area around the dwelling is laid to lawn, whilst other areas of the appeal site are woodland. The dwelling has two existing outbuildings.
5. Chapter 13 of the Framework outlines that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The government attaches great importance to Green Belts, the essential features of which are their openness and permanence.
6. The proposal would be positioned more than 5 metres from the dwelling. In such circumstances, Policy GB3 of the Sevenoaks Allocations and Development Management Plan (2015) (SADMP) outlines that outbuildings will be permitted where the building, including the cumulative impact of other outbuildings and

extension within the curtilage of the dwelling, would be ancillary to the main dwelling in terms of function and design and would not materially harm the openness of the Green Belt through excessive bulk or visual intrusion.

7. Policy GB7 of the Framework sets out certain exceptions where development in the Green Belt is not inappropriate development. The appellant argues GB7.1.e. of the Framework is of relevance to the appeal. This identifies the redevelopment of previously developed land which would not cause substantial harm to the openness of the Green Belt, as an exception which would not be inappropriate development.
8. The Framework defines previously developed land as that which has been lawfully developed and is or was occupied by a permanent structure and any fixed surface infrastructure associated with it, including the curtilage of the developed land (although it should not be assumed that the whole of the curtilage should be developed). It excludes land in built-up areas such as residential gardens. In this respect, a court judgement¹ found that residential gardens that are not in built-up areas are not excluded from the general definition of previously developed land.
9. The main parties agree that the appeal proposal would be within the dwelling's residential curtilage, and I observed that it would be positioned on land that is clearly part of the garden associated with the dwelling. This part of School Lane has a rural character typified by areas of woodland, open countryside and a loose scattering of dwellings, often in large plots. Consequently, based on the evidence before me and my own observations of the site, I consider that the appeal site is not in a built-up area and therefore represents previously developed land.
10. The Framework requires under policy GB7.1.e. that the harm to openness must be substantial for the development to be considered inappropriate development in the Green Belt. However, Policy GB3 of the SADMP requires that proposals for outbuildings do not materially harm the openness of the Green Belt through excessive bulk or visual intrusion. The wording used in Policy GB3, in relation to the impact on openness, is therefore not strictly consistent with the Framework, in specific scenarios which involve proposals on previously developed land.
11. Openness is an essential characteristic of the Green Belt and is capable of having both spatial and visual aspects. The proposal would result in the addition of a single storey outbuilding with a hipped roof and a significant footprint. This would introduce new built form into an area of the appeal site that is currently undeveloped garden, thereby reducing the openness of the site. However, when seen in the context of the very large host dwelling and appeal site, the proposal would result in a moderate reduction in spatial openness.
12. Due to the size of the expansive grounds, the outbuilding would be located approximately 180 metres from School Lane. As a result of this distance from the highway, together with the filtering of views by intervening trees within the appeal site, the outbuilding would not be readily perceptible from School Lane. The remaining site boundaries are well screened by a mix of wood panel fencing, mature trees and vegetation which, combined with the site's secluded location, would significantly restrict public views of the outbuilding.

¹ Dartford BC v SSCLG [2017] EWCA Civ 141

13. Given the substantial screening of the proposal, its effect on the visual openness of the Green Belt as a whole would be very minimal. When considered alongside the moderate effect on spatial openness, it is my planning judgement that the overall impact on the openness of the Green Belt would be limited.
14. Policy GB3 of the SADMP requires that the outbuilding is ancillary to the main dwelling in terms of function and design. The outbuilding would be used for storage and workshop facilities in connection with the house and the management of the woodland. It would be associated with a very large dwelling, which is both significantly taller, has a much greater footprint, and is more than double the width of the proposed outbuilding. It would be designed in a traditional style, using traditional materials, reflective of the main dwelling. For these reasons, the outbuilding would be ancillary and subservient to the main dwelling and would not visually compete with it.
15. The garage would exceed the footprint area of 40 square metres that is given in the Sevenoaks Green Belt Supplementary Planning Document (SPD) as guidance. The guidance is not advanced as a strict rule, and the SPD confirms that its intention is to minimise the impact of outbuildings on the openness of the Green Belt. Given my findings in relation to the proposal's limited effect on the openness of the Green Belt, I do not find harm as a result of the outbuilding's large footprint.
16. Overall, the proposal would result in some conflict with Policy GB3 of the SADMP as the outbuilding would have a greater impact on the openness of the Green Belt. However, paragraph 38(6) of the Planning and Compulsory Purchase Act 2004 requires a planning application to be determined in accordance with the development plan unless material considerations indicate otherwise. Furthermore, Annex A of the Framework confirms that development plan policies (or parts of those policies) which are materially inconsistent with national decision-making policies in the Framework should be given very limited weight. As the 2026 Framework contains relevant and up to date national planning policy, I attach greater weight to the provisions of the Framework.
17. The outbuilding would not cause substantial harm to the openness of the Green Belt, and therefore it meets the exception in GB7.1.e. of the Framework. The outbuilding would therefore not be inappropriate development as defined by the Framework.

Conditions

18. I have had regard to the planning conditions that have been suggested. I have considered them against the tests in the Framework and the advice in the Planning Practice Guidance (PPG). I have made such amendments as necessary to comply with those documents and for clarity and consistency.
19. I have imposed standard conditions relating to the commencement of development. I have also imposed an approved plans condition in the interests of certainty.
20. Conditions relating to materials and tree protection are necessary in the interests of character and appearance.
21. Policy DM6 of the Framework is clear that conditions should not be used to restrict national permitted development rights unless there is clear justification to do so.

For this reason, I have not been provided with sufficient evidence as to why it would be necessary to restrict the construction of two buildings which the Council have previously confirmed could be constructed utilising permitted development rights.

Conclusion

22. For the reasons given above I conclude that the appeal should be allowed.

B Pattison

INSPECTOR

SCHEDULE OF CONDITIONS

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with drawings: 4549.01; 4549.02; 4549.03; 4549.04; 4549.05 and 4549.06.
- 3) No development shall take place, nor any demolition works or site clearance, until there has been submitted to and approved in writing by the local planning authority details of a scheme for the protection of trees shown to be retained within the Arboricultural Report Ref: GRS.6.24. The approved scheme shall be carried out during the demolition of the buildings and throughout the course of the development.
- 4) The external surfaces of the building shall be constructed of the materials specified on plan 4549.05.

END OF SCHEDULE